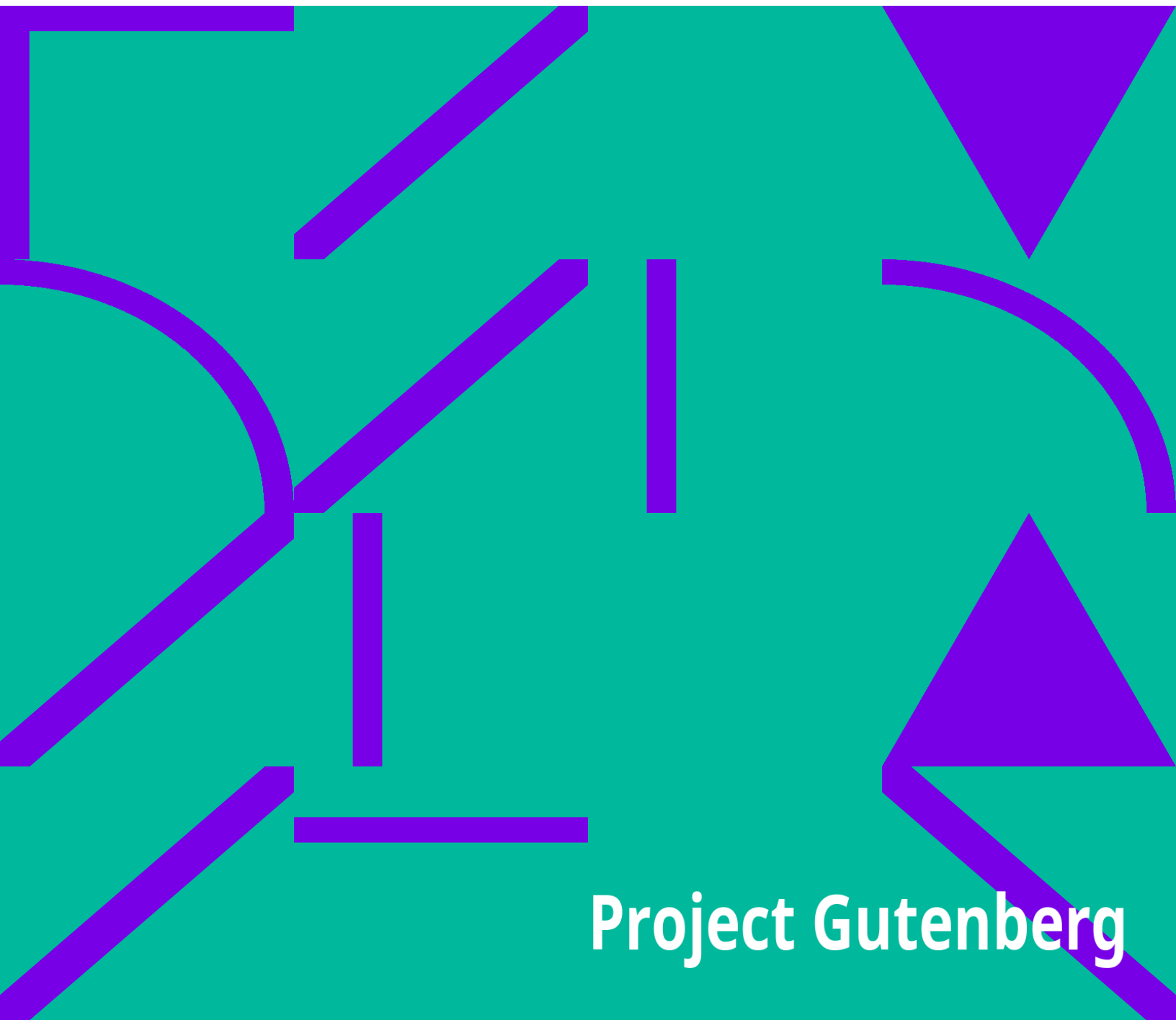


On Singing and Music

Society of Friends

An abstract geometric pattern consisting of various purple lines and shapes, including straight lines, arcs, and triangles, set against a teal background.

Project Gutenberg

On Singing and Music

Society of Friends

An abstract geometric pattern composed of various teal and purple shapes, including triangles, rectangles, and curved segments, arranged in a complex, overlapping manner.

Project Gutenberg

The Project Gutenberg eBook of On Singing and Music

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: On Singing and Music

Author: Society of Friends

Release date: August 12, 2008 [eBook #26279]

Most recently updated: January 3, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/26279

Credits: Produced by Bryan Ness, Jana Srna and the Online Distributed Proofreading Team at <https://www.pgdp.net> (This book was produced from scanned images of public domain material from the Google Print project.)

*** START OF THE PROJECT GUTENBERG EBOOK ON SINGING
AND MUSIC ***

ON

SINGING AND MUSIC.

TO BE HAD AT FRIENDS' BOOK STORE,
No. 304 Arch Street, Philadelphia.

1885.

At a Yearly Meeting of Friends held in Philadelphia from the 20th of the Fourth Month to the 24th of the same, inclusive, 1885.

An Essay on Singing and Music contained in the Minutes of the Meeting for Sufferings was now read, setting forth the spiritual nature of true worship, the danger of depending on outward forms in religious meetings, and the disadvantages connected with the practice of singing and music as an amusement. Much unity was expressed with the essay, and it was concluded that it should be published and distributed for information and warning to our own members and others. Desires were felt that in thus issuing a renewed testimony to the principles of our Society, we may be individually aroused to the necessity of so living in communion with the Father of Spirits, and in subjection to the revelations of his Light in our hearts, that our meetings may truly be held under the overshadowing of the Divine Power.

Taken from the Minutes.

JOSEPH WALTON, *Clerk.*

On Singing and Music.

We have been brought under a feeling of religious concern that the ancient testimony of the Society of Friends to the true nature of spiritual worship may be fully maintained by all who claim that name; and that they may be watchful against the introduction of practices which will undermine the support of this testimony, and thus lead those who profess to be the children of the Light, back into a dependence upon forms, out of which their forefathers in the Truth were brought by that remarkable outpouring of grace and spiritual power which marked the rise of Friends as a distinct people.

The fundamental doctrine declared by our Saviour, when He said, “It is the Spirit that quickeneth, the flesh profiteth nothing,” was steadily kept in view by George Fox and his fellow laborers. They clearly saw that Christ had ended the Jewish law, with its outward and ceremonial observances, and had introduced a spiritual dispensation, under which He, by his heavenly and eternal Light or Spirit, was to be the Leader, Guide and Helper of his people; that all was now to be done in and by Him; and that this was especially true of religious worship, which depends upon the enlightening, quickening power of his Holy Spirit.

All confidence in the flesh,—in the natural abilities of man,—was removed; and they were taught to distinguish between that which is of man and that which is of God,—between that stirring up of the natural feelings which can be produced by the skilful use of outward means, such as music, pictorial representations and architectural grace and grandeur; and that solemn covering of the heart which is a fruit and an evidence of the extension of Divine help and power.

Hence these divinely enlightened men and women laid aside the forms in which they had been educated, and which many of them had sincerely and zealously practised, and, in their private retirements before the Lord, and when they assembled for the performance of public worship, they sat in silence before Him, seeking to draw near in spirit, in living exercise of

mind, that they might feel the arising of his power, and be enabled to offer acceptable worship.

As that power arose in any, and under its influence, they were led to utter words of prayer or praise to the Almighty, or exhortation to their fellow believers; they were comforted or edified in proportion as they could feel the Spirit bearing witness to the life that accompanied the vocal expressions. Thus their dependence was not placed on man, but on the Spirit that quickeneth.

There was no desire to limit the operation of the Spirit, or to lay down any rule which would prohibit in times of worship any act which truly proceeded from its motions; but there was a jealous care that none of these outward things should be done as formal matters; that people should not look upon them as essential to the holding of meetings for worship, and that they should not in any manner be led away from their dependence on the fresh extension of Divine life and light to their souls, as the very foundation of true worship. The writings of the early members of our Society abound in evidences of their watchful care in this respect.

Among them, one of the most earnest and effective laborers for the spread of the Gospel, was Edward Burrough, whose efforts in London were blessed to a large number. Over the converts in that city he watched with anxious love; and, when absent in the service of his Master in other parts, frequently visited them by epistles, in which he gave much sound and practical advice. From these epistles are taken the following passages, referring to the manner in which these meetings for worship were to be held.

“We charge and command you in the presence of the Lord, whose power is dreadful, that you meet together in silence, and wait, and none to speak a word but what he is moved to speak, a word from the Lord.”—*E. Burrough's Works, Ed. 1672, p. 70.*

“We charge by the Lord that none speak without eternal [Divine] motion; for if you do, the false prophet speaks, and his words eat as a canker, and darken and vail them that hearken to it.”—*Id., p. 71.*

The nature of this spiritual worship is clearly portrayed by Robert Barclay; see the 11th Proposition of his Apology, particularly in Sections 6 and 7, to which we desire the reader to refer.

We have viewed with much concern the gradual creeping into the meetings of Friends, in some parts of the country, of latter years, of reading the Scriptures, and of singing, practices which, until within a few years, were almost unknown amongst us.

We believe that these changes are an evidence of a departure from that dependence on the Lord for ability to worship Him aright, which was so conspicuous a testimony of this Society; and that they are connected with a shrinking from patient waiting upon the Lord, and from the humbling exercise of mind which is often felt in endeavoring to draw near in spirit to Him.

Friends do not assemble in their meetings for Divine worship for the sake of listening to any outward performances. If this principle is once departed from, there is no tenable ground to prevent a gradual lapse into a full adoption of those forms out of which our Society was brought in the beginning. If the Scriptures are to be read in our meetings, how easy is it to conclude that a careful selection, such as is provided in the liturgies of some religious bodies, would be preferable to the choice likely to be made by persons of less education, or who have given less time and thought to the subject. If singing by tune is to be practised, why should not the highest style of art, aided by musical instruments, be made use of, so as more effectively to stimulate the emotions of the listeners? If preaching is essential to the proper holding of a meeting, it may be asked, would it not be better to employ persons of marked ability, who have been regularly trained to such an employment, and who may reasonably be supposed to be better prepared than others to interest and instruct an audience? If vocal prayer is always in place, without regard to the immediate promptings of Him who only knows the conditions and needs of those assembled, it might be asked, why not use some of those beautiful and comprehensive forms which are found in the prayer-books of other societies?

Thus, there is reason to fear, the language of the prophet might become applicable to our Society. “I had planted thee a noble vine, wholly a right seed; how then art thou turned into the degenerate plant of a strange vine unto me?”

We think the danger we have endeavored to point out is peculiarly great as respects music and singing, owing to the power over the natural sensibilities, which sweet sounds possess; and it is easy to mistake the emotions thus produced for the tenderness of mind and the softening influence of “the Spirit that quickeneth.”

The distinction between these is very clearly pointed out by the late Thomas Chalmers, a distinguished clergyman of the Presbyterian Church of Scotland, a man eminent for his abilities, and whose position gave him abundant opportunities for observing that of which he speaks. He says:

“You easily understand how a taste for music is one thing, and a real submission to the influence of religion is another; how the ear may be regaled by the melody of sound, and the heart may utterly refuse the proper impression of the sense that is conveyed by it; how the sons and daughters of the world may, with their every affection devoted to its perishable vanities, inhale all the delights of enthusiasm, as they sit in crowded assemblage, around the deep and solemn oratorio.” “It is a very possible thing, that the moral and the rational and the active man, may have given no entrance into his bosom for any of the sentiments, and yet so overpowered may he be by the charm of vocal conveyance through which they are addressed to him, that he may be made to feel with such an emotion, and to weep with such a tenderness, and to kindle with such a transport, and to glow with such an elevation, as may one and all carry upon them the semblance of sacredness.”—*Chalmers' Works, Phila., 1830, p. 107–8.*

In speaking of the connection between music and worship, another person, not a member of the Society of Friends, observes: "I firmly believe" "that if we seek to affect the mind by the aid of architecture, painting or music, the impression produced by these adjuncts is just so much subtracted from the worship of the unseen Jehovah. If the outward eye is taken up with material splendor, or forms of external beauty, the mind sees but little of Him who is invisible; the ear that is entranced with the melody of sweet sounds, listens not to the still small voice by which the Lord makes his presence known."

"True spiritual access unto God," says another writer, "is not at all furthered by the excitement of the animal or intellectual frame. It is most commonly known, where in abstraction from outward things, the mind, in awful quietude, finds itself gathered into a sense of the presence of Infinite Purity."

"By the power of imagination; by the influence of eloquent words; by a stirring swell of elevated music, the mind may be excited; the feelings may be tendered, and we may pour forth verbal supplication, whilst the heart is unchanged."

Edward Burrough thus instructively describes the changes which followed the declension of the primitive church from its original state of life and purity.

"When the gift of the ministry through the Holy Ghost was lost and no more received, men began to make ministers by learning arts and languages and human policy. They began to study from books and writings what to preach, not having the Holy Ghost, without which none are the ministers of Christ." "Having lost the sense of God's true worship, which is in spirit and in truth, they began to worship in outward

observances, which is not the worship of God, but superstitious and idolatrous.” “When singing in the spirit and with the understanding ceased, then people began to introduce the form of singing David's experiences, in rhyme and metre; and thus, in the apostacy, the form grew as a substitute for that which the saints had enjoyed in power; shadows were set up instead of the substance, and death instead of life.”

The same writer in an appeal to the professors of his day to test their religious profession by the Scriptures, says:

“Likewise you sing and give to sing David's psalms in rhyme and metre, professing it is to the glory and honor of God. Ye practise this as an ordinance of God, as a part of his worship, and as a part of your religion; but this practice and profession also are manifest not to be according to the Scriptures; because it was never commanded; neither is there any precedent for this practice in the Scriptures in gospel times.”

Robert Barclay says, “We confess this [singing of Psalms] to be a part of God's worship, and very sweet and refreshing when it proceeds from a true sense of God's love in the heart, and arises from the Divine influence of the spirit.” But he condemns “the formal, customary way of singing,” which was practised by professors in his day, and has been continued down to the present time, as having “no foundation in Scripture, nor any ground in true Christianity.” He concludes his remarks on this subject in the following words: “As to their artificial music, either by organs or other instruments, or voice, we have neither example nor precept for it in the New Testament.”

Independently of that harmony of sound which is the result of musical skill, there is a modulation of the voice which is an index of the feelings of the mind. Where the heart is melted under a sense of Divine goodness and love, and thanksgiving to the Author of all our blessings flows from it, true melody is often shown in the tones of the voice; and this is sometimes apparent even when no words are distinctly uttered. It is to such a state of

mind we understand the Apostle Paul to refer when he speaks to the Ephesians, of “making melody in your heart to the Lord.” When an outward harmony, depending upon “invented tunes, such as please the carnal mind,” and upon words which have been committed to memory in order to be sung therewith, takes the place of that expression which comes from the heart and is uttered under a sense of the Divine requiring, then those who take part therein fall into that “formal,” “customary,” “artificial” way of singing, against which the Society of Friends has borne a steady testimony from its rise.

These observations apply to vocal religious exercises in the family as well as in more public gatherings.

We believe the tendency of this artificial music on the mind, even when attuned to the expression of religious sentiment, and accompanied by the language of Divine worship, is to “lead the soul almost insensibly to substitute a pleasing emotion which ends in self, for those spiritual sacrifices which are acceptable to God by Jesus Christ, even a broken and contrite heart, and that communion with the Father and the Son which results from loving God and keeping his commandments.”

In congregational singing, there is an added inconsistency. For, it is in the highest degree improbable that those assembled on such occasions will be in such a frame of mind as will fit them properly and truthfully to join in the offering of the prayers or praises expressed in the hymns which may be given out to be sung. This objection is pointed out by Barclay in his Apology, where, after stating that “the formal customary way of singing hath no foundation in Scripture, nor any ground in true Christianity,” he adds, “all manner of wicked, profane persons take upon them to personate the experiences and conditions of blessed David; which are not only false as to them, but also to some of more sobriety, who utter them forth.” “Such singing doth more please the carnal ears of men, than the pure ears of the Lord, who abhors all lying and hypocrisy.” (*Prop. XI, sect. 26.*)

This difficulty has been felt by many sincere persons who were not members of our Society, and has prevented some of them from joining in such performances. John Spalding, while still a member of the established Church of England, was so convinced of its inconsistency, that he addressed a letter to those who met at the place of worship which he was accustomed to attend, in which he says:

“I appeal to the witness of God in every heart, considering the variety of conditions, the different subjects of praise, adoration, confession, petitioning, &c., contained in every collection of hymns, whether in the fear of the Lord any one, in whatever state or condition he may be at the time, can with propriety be ready to sing whatever may be given out.”

John Spalding further testifies as to the effect of formal singing in worship. “From my own experience I can say it has a tendency to divert the mind from solemn, serious reflections. I am now speaking more particularly concerning those, who have attained to a measure of the grace of God. Ask yourselves, is outward singing intended or calculated to please the carnal ears of men, or a holy God? Why such anxiety about tunes, voices, and music? Is the Lord to be pleased with such poor things? Oh, no, you cannot suppose it. Consider from what root it springs; from the old man or the new; and remember the axe is laid to the root to destroy all that is of the earth, of our fleshly nature. I have considered those passages in the New Testament where the subject is mentioned, and am confirmed by them in my opinion of the inconsistency of public singing. The apostle speaks of singing with grace in the heart; of making melody in the heart to the Lord, not making a noise with the tongue, unless that proceeds from the heart.”

In a Memorial concerning Edward Cobb of Maine, issued by Falmouth Monthly Meeting, there is preserved some account of his religious

experience before he became a member of the Society of Friends, which took place in 1797. In this he states:

“When quite young, I learned the rules and was very fond of what is called sacred music, sparing no pains to attend schools for that purpose; and the prayer of my heart to be directed aright regarding worship, seemed to receive the first intelligible answer by the way of reproof in this exercise; and when, at the head of a choir of singers, words have occurred that, through the enlightening influence of heavenly goodness, (which had long been operating on my mind), appeared evidently inconsistent with my own state, I have often, to be unobserved by the company, kept the tune along; while I feared that taking the words into my mouth, and uttering them as worship to Him who requires worship of his creature man in spirit and in truth, could be nothing short of solemn mockery from that mind which had been so far enlightened as to believe that nothing could be acceptable worship to Almighty God but what came from Him, and, through the medium of his own Spirit, was breathed out to Him again as that Spirit should dictate, whether in prayer or in praises to his great name.”

In confirmation of the fact that those who were convinced of the principles of Friends, when they joined in membership, were constrained to lay aside their former practices of reading and singing in meetings for Divine worship, it may be mentioned, that although the writings of those who were mainly instrumental in gathering the Society at the time of its rise, contain many advices, cautions and encouragements to its members, as to the exercise of the ministry, and as to worship, yet they are almost totally silent as to these practices.

In expressing these views, our object is to guard our own members from sliding into the adoption of views and practices which are inconsistent with,

and lead away from the standard of spiritual religion and worship believed in by us, and thus cause us to lose that post in his militant church which was assigned us by its Holy Head.

We have been concerned also at the increase of instruments of music and the practice of singing in the families of our members, as a means of amusement. Even under the Jewish dispensation a woe was pronounced upon those who in a wanton and unconcerned state of mind invented unto themselves instruments of music like David, but who were not grieved for the afflictions of Joseph—that is, for the exercises and sufferings of the righteous seed.

George Fox declares that he was led to cry out against all sorts of music; and the advices of our Society down to modern times have been uniformly in the same direction. It has been felt that the time required to become a proficient in its practice was improperly taken from more important uses; that the emotions it produces have no tendency to strengthen the intellectual or moral character; that the most melodious sounds that human instruments can make have no power to implant principles, give strength to resist temptation or eradicate selfishness; that the love of music often leads into associations which are corrupting in their character, as is shown by its use in promoting the frivolity of the ball-room, and the dissipation of the drinking-saloon, and especially in exciting the passions and drowning the sensibilities of those engaged in the awful conflicts of the battle-field; and that it is often resorted to to dispel the feelings of sadness and inquietude which are spread over the mind at times by the Holy Spirit, and are the merciful visitations of our compassionate Redeemer, designed to draw the thoughts away from earthly things, and to fix them upon the alone Source of never ending happiness. Instead of quietly and patiently abiding under these dispensations, with the mind stayed on the Lord, in order to experience their full benefit, if any of these visited ones should resort to instruments of music and other means of dissipating the impressions on their minds, it will be likely to mar the blessing designed by this extension of the mercy of God to their souls.

The same kind of reasoning, which would defend the use of music and singing as amusements, may also be urged in support of dancing, attending

theatrical exhibitions, and other indulgences, which, in the aggregate, distinguish the man of the world from the self-denying follower of Christ.

We desire, therefore, renewedly to call the attention of Friends to this subject; and to caution them against indulging themselves or their families in any practice, however pleasing to the natural taste, which will weaken their hands in supporting in its purity our ancient testimony to the nature of spiritual worship; or which will have the effect of retarding their own progress in the self-denying path that leads to the kingdom of heaven.

*** END OF THE PROJECT GUTENBERG EBOOK ON SINGING AND
MUSIC ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.